SAMPLE FOR GENERAL INFORMATION ONLY, NOT LEGAL ADVICE. HAVE AN ATTORNEY REVIEW BEFORE USE.

This sample is generic. It may not fit your situation and is not a substitute for advice from a licensed Florida attorney or tax advisor. LaunchForma is not a law firm. Replace every [bracketed] item and remove anything that does not apply.

OPERATING AGREEMENT OF [LLC NAME], LLC

A Florida Single-Member Limited Liability Company (SAMPLE)

This Operating Agreement (the "Agreement") is made effective as of [EFFECTIVE DATE] by [MEMBER FULL LEGAL NAME] (the "Member"), as the sole member of [LLC NAME], LLC (the "Company").

1. Formation

1.1 The Company was formed as a Florida limited liability company by filing Articles of Organization with the Florida Department of State, Division of Corporations, effective [FORMATION DATE], document number [DOCUMENT NUMBER].

1.2 The Company is governed by this Agreement and by Chapter 605, Florida Statutes (the Florida Revised Limited Liability Company Act) (the "Act"). Where this Agreement does not address a matter, the Act governs.

2. Name, Office, and Registered Agent

2.1 Name: [LLC NAME], LLC.

2.2 Principal office: [STREET ADDRESS, CITY, FL ZIP] or another place the Member chooses.

2.3 Registered agent and registered office: [REGISTERED AGENT NAME], [FLORIDA STREET ADDRESS], or as later changed by filing with the Florida Department of State.

3. Purpose

The Company may engage in [DESCRIBE BUSINESS] and any lawful activity permitted under the Act.

4. Term

The Company continues until dissolved under Section 11 or the Act.

5. Member, Contribution, and Ownership

5.1 The Member owns 100% of the membership interest in the Company.

5.2 Initial contribution: [DESCRIBE CASH, PROPERTY, OR SERVICES AND AGREED VALUE].

5.3 The Member is not required to make additional contributions. Any additional contributions are at the Member's discretion and will be recorded in the Company's records.

6. Management

6.1 The Company is [member-managed / manager-managed], consistent with its Articles of Organization.

6.2 [If member-managed:] The Member has full authority to manage the Company and to act on its behalf. [If manager-managed:] The Company is managed by [MANAGER NAME(S)], who serve(s) until removed or replaced by the Member.

6.3 Banking. [MEMBER OR MANAGER NAME] is authorized to open, maintain, and close bank accounts in the Company's name and to sign checks and authorize transfers on those accounts.

6.4 Officers. The Member may appoint officers or agents with titles and authority set in writing.

7. Distributions

Distributions are made to the Member at the times and in the amounts the Member decides, subject to the limits of the Act.

8. Taxes

The Company's tax classification will be determined by applicable law and any elections the Member makes. The Member should consult a tax advisor. [OPTIONAL: describe any election made.]

9. Separateness and Records

9.1 The Company will keep its funds in its own accounts, separate from the Member's personal funds.

9.2 The Company will keep the records required by the Act at its principal office, including a copy of this Agreement and any amendments.

10. Transfer; Death or Incapacity

10.1 The Member may transfer all or part of the membership interest. A transferee becomes a member only as provided in this Agreement or the Act.

10.2 If the Member dies or is adjudicated incapacitated, [NAME OF SUCCESSOR / the Member's legal representative or heirs] may [become a member / exercise the Member's rights] as permitted by the Act. [Discuss this section with an attorney.]

11. Dissolution

The Company will be dissolved on [the Member's written decision / other events] or as provided in the Act. On dissolution, the Company will wind up its affairs, pay or provide for its debts, and distribute remaining assets to the Member.

12. Liability and Indemnification

12.1 The Member is not personally liable for the Company's debts and obligations solely by reason of being a member, except as provided by law.

12.2 To the extent permitted by the Act, the Company may indemnify the Member and any manager for acts taken on behalf of the Company in good faith. [Review with an attorney.]

13. General

13.1 Amendments must be in writing and signed by the Member.

13.2 This Agreement is governed by the laws of the State of Florida.

13.3 If any provision is found unenforceable, the rest of the Agreement remains in effect.

13.4 This Agreement is the entire agreement of the Member regarding the Company's internal affairs.

Signature

MEMBER:

_____

[MEMBER FULL LEGAL NAME]

Date: [DATE]

[If manager-managed, MANAGER acknowledgment:]

_____

[MANAGER NAME]

Date: [DATE]